



Gaming (Amendment) Act 1986

1986 CHAPTER 11

An Act to amend section 16 of the Gaming Act 1968 to make provision for the redemption of cheques; and to amend section 22 of that Act as to the records to be kept with respect to cheques. [2nd May 1986]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 16 of the Act of 1968 (provision of credit for gaming) shall be amended as follows. Amendment
of section 16
of Gaming
Act 1968.

(2) In subsection (1), for the words “the next following subsection” there shall be inserted the words “subsections (2) and (2A) of this section”.

(3) After subsection (2) there shall be inserted—

“(2A) Neither the holder of a licence under this Act nor any person acting on his behalf or under any arrangement with him shall permit to be redeemed any cheque (not being a cheque which has been dishonoured) accepted in exchange for cash or tokens for enabling any person to take part in gaming to which this Part of this Act applies unless the following conditions are fulfilled, that is to say—

(a) the cheque is redeemed by the person from whom it was accepted giving in exchange for it cash, or tokens, or a substitute cheque, or any combination

of these, to an amount equal to the amount of the redeemed cheque or (where two or more cheques are redeemed) the aggregate amount of the redeemed cheques;

- (b) it is redeemed during the playing session in which it was accepted, or within thirty minutes after the end of the session;
- (c) where a substitute cheque is given in whole or in part exchange for the redeemed cheque the substitute cheque is not a post-dated cheque; and
- (d) where tokens are given in whole or in part exchange for the redeemed cheque, the value of each token is equal to the amount originally given in exchange for it or, if the token was won in the gaming, the value it represented when won;

but, where those conditions are fulfilled, the return of a redeemed cheque in exchange for cash, or tokens, or a substitute cheque, or any combination of these, shall not be taken to contravene subsection (1) of this section.”.

(4) In subsection (3), after the words “of this Act applies” there shall be inserted the words “or a substitute cheque”.

(5) After subsection (3) there shall be inserted—

“(3A) Subsection (3) of this section shall not apply to a redeemed cheque.”.

(6) In subsection (4), after the words “of this Act applies” there shall be inserted the words “or any substitute cheque.”.

(7) At the end of subsection (5) there shall be inserted—

““playing session” means a continuous period during one day, or two consecutive days, throughout which gaming is permitted by or under this Act to take place on premises in respect of which a licence under this Act is for the time being in force;

“redeemed cheque” means a cheque accepted in fulfilment of the conditions specified in subsection (2) of this section and returned to the person from whom it was accepted in fulfilment of the conditions specified in subsection (2A) of this section;

“substitute cheque” means a cheque accepted in accordance with subsection (2A) of this section by either the holder of a licence under this Act or a person acting on behalf of or under any arrangement with the holder of such a licence.”.

Amendment
of section 22
of Gaming
Act 1968.

2. Section 22 of the Act of 1968 (further powers to regulate licensed club premises) shall be amended by the insertion, in subsection (1)(b), after the words “on those premises”, of the

words " and with respect to redeemed cheques and substitute cheques within the meaning of section 16 of this Act ".

3.—(1) In this Act, " the Act of 1968 " means the Gaming Act 1968.

Interpretation,
short title,
commence-
ment and
extent.
1968 c. 65.

(2) This Act may be cited as the Gaming (Amendment) Act 1986.

(3) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint.

(4) This Act does not extend to Northern Ireland.